

CONSTRUCTION AND NOISE DISTURBANCE ADDENDUM

Addendum Date: _____

Management _____

["Management"] ☐ as Owner of or ☐ as Agent for the Owner of _____

["Property Name"] enters into this Construction and Noise Disturbance Addendum to the Rental Contract ("Lease") with

Resident pertaining to House / Unit No. _____ located at _____

[Address] with _____

["Resident"].

This addendum is part of the Rental Agreement dated _____ [Date of Lease]. If any terms of the Lease and this Addendum conflict, then the terms of this Addendum shall control. This Addendum is incorporated by reference into the Rental Contract.

1. Definitions. The term "Resident" includes all Residents who have signed this addendum and any child, minor, person, or occupant of which the Resident is the parent or legal guardian. The term "Owner" refers to the ownership entity. If this addendum is signed by the Owner, then the Owner is also referred to as "Management." If this addendum is signed by the company or persons managing the property on behalf of and as the agent for the Owner, then "Management" refers to the managing agent of the owner. The terms "Owner" and "Management" include their respective general and limited partners, officers, directors, agents, employees, and shareholders or members. "Property areas" include any outdoor areas, yard, driveway, walkways, and any other areas located on the property that do not include the Resident's living space inside the house.

2. Purpose and Acknowledgment. This Addendum releases Owner and Management from all claims arising out of the repairs, improvements, construction, renovations, or noise by any other person, including but not limited to, contractors, construction work, deliveries, or any other third party at the house or on the property. Resident acknowledges that the house and property, including but not limited to, any outdoor or property areas, may currently or in the future be under construction, or in need of repair, renovations, or improvement. Any repairs, renovation, improvements, construction, or noise emanating by any contractor or any third-party at the house or on the property is not actionable or considered a nuisance or a breach of contract pursuant to the Rental Contract. If construction is ongoing on or near the house or property, Resident agrees that Owner and Management do not guaranty completion on a set date and time, and Owner and Management is under no obligation to complete any repairs, improvements, construction, or renovations on the property on a set date and time.

Resident acknowledges and agrees that the house and property may be under repair, renovation, improvement, or construction, causing their use to either be limited or not available.

Resident agrees that he or she leased the house and accepted the property and any outdoor areas as-is. The waiver and release of liability in this paragraph does not apply to the owner's or occupier of land's duties and liability under applicable landlord and tenant law that apply to the house itself.

3. Construction Areas. Resident agrees not to enter into any construction area where repairs, renovations, improvements, or construction is being performed. By doing so, Residents assumes the risk of all liability. Entry into any construction area where repairs, renovations, improvements, or construction is being performed shall be a material breach of the lease and subject resident to immediate termination of the lease.

4. Acknowledgment of Noise and Disturbances. Resident acknowledges that repairs, renovations, improvements, or construction at or near the property may create noise or other disturbances that may be an inconvenience to Resident, Resident's occupants, social guests, visitors, or invitees. These inconveniences do not excuse Resident from the obligation to pay rent, nor do they create a claim or cause of action for diminution in value, breach of lease, constructive eviction, negligence, nuisance, or any other claim whatsoever against Owner or Management.

Resident also acknowledges that construction, repairs, or activity on neighboring properties may create noise or other disturbances that may also be an inconvenience to Resident, Resident's occupants, social guests, visitors, or invitees. These inconveniences do not excuse Resident from the obligation to pay rent, nor do they create a claim or cause of action for diminution in value, breach of contract, constructive eviction, negligence, nuisance, or any other claim whatsoever against Management or the Owner.

5. **Release.** Resident agrees to waive, release, hold harmless, and forever discharge, Management and the Owner from any loss, damages, liability, or claims related to Resident's inability to use and access any outdoor or property areas due to repairs, renovations, improvement, or construction on or near the property, including but not limited to all noise and disturbances that arise out of repairs, renovations, improvements or construction at the property.

If Resident is disturbed due to noise or other disturbances from repairs, renovations, improvements, or construction on or near the property, or caused by a third-party, Resident agrees that he or she is not entitled to any offset for any rental obligations, or other compensation, nor shall it be the basis for any other claim or cause of action, including but not limited to diminution in value, breach of contract, constructive eviction, negligence, nuisance, or any other claim whatsoever against the Owner or Management.

Resident covenants not to sue and acknowledges, understands, and agrees to forever waive, and release Owner and Management, its agents, owners, successors, and employees from any and all claims, including but not limited to diminution in value, breach of contract, nuisance, constructive eviction, any claim in tort, and any right to withhold rent due to the inconvenience or disturbances due to all noise, smells, or lights, including but not limited to, repairs, improvement, renovations, construction, emanating from the surrounding area that disturbs the resident's quiet enjoyment of the house. Resident understands and agrees that this includes, but is not limited to, any noise, smells, lights, deliveries, trash hauling, cooking smells, and all other disturbances that could be considered anything to disturb the Resident for any reason whatsoever.

6. **Delay of Occupancy Due to Construction, Renovation or Repair.** Resident acknowledges that the house may be delayed for occupancy due to repairs, renovations, improvements, or construction of the house. If there is a delay in delivering possession then the possession provisions of the Rental Contract shall control with regards to when rent will commence.

Residents knowingly and voluntarily accepts the risks of any delay and the house not being ready for occupancy on the commencement date of the Rental Contract. Resident agrees that if the house is not ready on the commencement date of the lease due to repair, improvements, renovations, or construction it shall not constitute a willful failure to deliver possession. Resident waives, releases, and forever discharges Owner and Management from all claims, actions, or cause of action against Owner and Management relating to delays in delivering possession of the house.

7. **Relocation.** If the Owner or Management owns or manages another comparable rental property that is not affected by repairs, renovations, improvements, or construction, Resident may agree to transfer to that property if deemed necessary by the Owner or Management and agreed to by the Resident. In the event the parties agree to such a transfer, the payment of rent shall remain in full force and effect without abatement.

8. **Merger of All Prior Statements.** All prior statements, representations or agreements pertaining to the repairs, improvements, renovations, and construction and relating to noise shall be void and unenforceable and are merged herein unless such representation is in writing and signed by all parties to this addendum and the Rental Contract.

9. **Any Portion of Addendum Found to Be Void or Unenforceable To Be Severed and Remainder Enforced.** If any phrase, sentence, portion, provision, or paragraph of this addendum shall be found or determined to be void or unenforceable under applicable law, then such void or unenforceable phrase, sentence, portion, provision, or paragraph shall be severed, and the balance or remainder of this addendum shall be upheld as valid and enforceable so as to carry out the expressed intent of the parties to this contract. The provisions of this addendum are contractual in nature and not mere recitals. If any phrase, sentence, portion, provision, or paragraph of this addendum is held to be void or unenforceable, the addendum in its entirety shall still be admissible in evidence in any civil lawsuit or trial with appropriate instructions as to effectiveness of the void or unenforceable portion.

Management:

Name of Owner or Management Company

By:

Signature of Owner or Management Company Representative

As:

Title of Owner or Management Company Representative Signing

Resident or Residents:

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature